

Mihir Harshad Vyas And Ors vs The State Of Maharashtra And Anr on 29 September, 2022

Author: S. M. Modak

Bench: Revati Mohite Dere, S. M. Modak

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IN THE HIGH COURT OF JUDICATURE AT BOMBAY
CRIMINAL APPELLATE JURISDICTION

CRIMINAL WRIT PETITION NO. 6188 OF 2019

Date: 2022.10.01
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1. Mr. Mihir Harshad Vyas
2. Mrs. Nayna Harshad Vyas
3. Mr. Nakul Harshad Vyas ...Petitioners

Versus

1. The State of Maharashtra
2. Mrs. Nisha Mihir Vyas ...Respondents

Ms.Urvi Shah i/b. M/s. I.R. Joshi and Co., Advocate for the Petitioners.

Mrs.A.S.Pai, PP a/w Mr.J.P.Yagnik, APP for the Respondent No.1-State.

Mr.Arun Atwal a/w Mr.Jigar Agarwal, Ms.Suman Maurya and Mr.Baba Singh, Advocates for the Respondent No.2.

CORAM : REVATI MOHITE DERE &
S. M. MODAK, JJ.

DATE : 29th SEPTEMBER 2022

P.C. :

- 1 Heard learned Counsel for the parties.
- 2 Rule. Rule is made returnable forthwith, with the

consent of the parties and is taken up for final disposal. Learned APP waives notice on behalf of the respondent no.1-State and Ms.Shah waives notice on behalf of the respondent no.2.

3 By this petition, the petitioners seek quashing of the FIR/complaint, registered vide C.R. No. 0144 of 2016 with the Mira Road Police Station, Mumbai for the alleged offences punishable under Sections 498-A, 406, 323, 504, 506 read with 34 of the Indian Penal Code. Quashing is sought on the premise, that the parties have amicably settled their dispute.

4 Perused the papers. The petitioner no.1 is the husband of the respondent no.2 and the petitioner no.2 is the mother in-law and petitioner no.3 is the brother in-law of the respondent no.2 respectively. It appears that the petitioner no.1. Respondent No.2 got married on 1 st June, 2010 at Mira Road, Thane as per the Hindu rites and rituals. Post marriage, there was some marital discord between the 903-WP-6188-2019.doc parties, pursuant to which the respondent no.2 lodged the aforesaid C.R. with Mira Road Police Station alleging the aforesaid offences. After investigation, charge-sheet was filed as against the petitioner and the case is presently pending before the learned JMFC, 9 th Court at Thane being R.C.C.No. 97 of 2017.

5 It appears that in the interregnum, the parties decided to amicably resolve and settle their dispute. Accordingly, in 2016, a petition for dissolution of marriage under Section 13-B of the Hindu Marriage Act was filed by the parties before the 7th Joint Civil Judge Senior Division, Thane. Consent terms were filed on 21 st January, 2019 and decree of divorce of mutual consent was passed on 28 th December, 2019. Learned Counsel has tendered a certified copy of the said judgment and order dated 28th December, 2019, dissolving the marriage between the petitioner no.1 and the respondent no.2 , by decree of divorce by mutual consent. It appears that the petitioner no.1 by a gift deed has been 903-WP-6188-2019.doc given a flat at Mira Road and has been paid Rs.8,50,000/- by way of one time settlement to the respondent no.2. It appears that the said flat has been given to the respondent no.2 to manage the education, maintenance and welfare of their son for lifetime.

6 Today, the respondent no.2 is present in person. She has tendered her consent affidavit dated 19 th August, 2022, duly affirmed before the Assistant Registrar, High Court. The said affidavit is taken on record. In the said affidavit, the respondent no.2 has stated that she has amicably settled the dispute and that, she has decided to withdraw all allegations/complaints made by her against the petitioners, including the subject FIR. She has stated that she has no objection for quashing of the said C.R./proceedings. On being questioned, the respondent no.2 reiterates what is stated by her in the affidavit. She is identified by her Counsel Mr.Arun Atwal. Learned Counsel for the respondent no.2 has handed over a xerox copy of the aadhar card which 903-WP-6188-2019.doc is in her maiden name Nisha Jaiswal, duly certified by her. The same is taken on record.

7 Considering the nature of dispute, the relations between the parties, the amicable settlement between them and having regard to the judicial pronouncements of the Apex Court in Gian Singh vs. State of Punjab & Anr.¹ and Narinder Singh & Ors. vs. State of Punjab & Anr.², there is no impediment in allowing the petition. 8 The petition is accordingly allowed and the FIR bearing C.R.No.0144 of 2016 registered with the Mira Road Police Station, Mumbai is quashed and set aside. Consequently, the proceedings which is pending before the Learned JMFC, 9th Court, Thane bearing R.C.C.No.97 of 2017 is also quashed and set aside.

9 Rule is made absolute in the aforesaid terms. Petition is disposed of accordingly.

1 (2012) 10 SCC 303 2 (2014) 6 SCC 466 903-WP-6188-2019.doc 10 All concerned to act on the authenticated copy of this order.

S. M. MODAK, J.

REVATI MOHITE DERE, J.